



U.S. Department
of Transportation

Research and
Special Programs
Administration

400 Seventh Street, S.W.
Washington, D.C. 20590

DOT-E 11515
(THIRD REVISION)

EXPIRATION DATE: July 31, 1999

(FOR RENEWAL, SEE 49 CFR SECTION 107.109)

1. GRANTEE: R. J. Reynolds Tobacco Company
Winston-Salem, N.C.
2. PURPOSE AND LIMITATION: This exemption authorizes the transportation in commerce of Aluminum processing by-products, Division 4.3, contained in an open top trailer covered with a canvas tarpaulin. This exemption provides no relief from any regulation other than as specifically stated herein.
3. REGULATORY SYSTEM AFFECTED: 49 CFR Parts 106, 107 and 171-180.
4. REGULATIONS FROM WHICH EXEMPTED: 49 CFR Section 173.242.
5. BASIS: This exemption is based on the application of R. J. Reynolds Tobacco Company dated June 27, 1997 submitted in accordance with 49 CFR 107.109
6. HAZARDOUS MATERIALS (49 CFR 172.101):

Hazardous materials description -- proper shipping name	Hazard Class/ Division	Identi- fication Number	Packing Group
Aluminum processing by-products	4.3	UN3170	III

7. PACKAGING AND SAFETY CONTROL MEASURES:

PACKAGING - Packaging prescribed is an open top dump type trailer. The trailer must be securely and fully covered with a leak proof tarpaulin.

8. SPECIAL PROVISIONS:

a. The trailer must be placarded on all four sides with both the DANGEROUS WHEN WET placards.

b. Drivers must perform the following inspections and procedures as noted below prior to transportation:

Inspect the load to assure that:

- the proper placards are securely attached.
- the waterproof tarp is leak proof, clean, free of oil and properly secured.
- in case of FIRE or ACCIDENT, notify the local Police and Fire departments of the load being transported and its hazards.

c. The employee(s) responsible for loading shall insure that the material is loaded dry.

d. No smoking is permitted when loading or unloading the trailer.

e. The trailer must be free from leaks and securely closed during transportation.

f. Motor carriers operating under the terms of this exemption must have a "Satisfactory" or "Conditional" safety rating as prescribed in 49 CFR Part 385.

9. MODES OF TRANSPORTATION AUTHORIZED: Motor vehicle.

10. MODAL REQUIREMENTS: A copy of this exemption must be carried aboard each motor vehicle used to transport packages covered by this exemption.

11. COMPLIANCE: Failure by a person to comply with any of the following may result in suspension or revocation of this exemption and penalties prescribed by the Federal hazardous materials transportation law, 49 U.S.C. Section 5101 et seq:

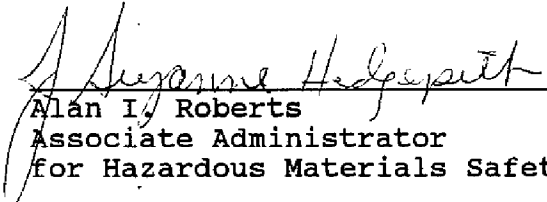
- o All terms and conditions prescribed in this exemption and the Hazardous Materials Regulations, 49 CFR Parts 171-180.
- o Registration required by 49 CFR 107.601 et seq., when applicable.

Each "Hazmat employee", as defined in 49 CFR 171.8 who performs a function subject to this exemption must receive training on the requirements and conditions of this exemption in addition to the training required by 49 CFR 172.700 and 172.704.

No person may use or apply this exemption, including display of its number, when the exemption has expired or is otherwise no longer in effect unless a regulation has been amended making the exemption no longer necessary.

12. REPORTING REQUIREMENTS: The carrier is required to report any incident involving loss of packaging contents or packaging failure to the Associate Administrator for Hazardous Materials Safety (AAHMS) as soon as practicable. (49 CFR 171.15 and 171.16 apply to any activity undertaken under the authority of this exemption.) In addition, the holder(s) of this exemption must inform the AAHMS, in writing, of any incidents involving the package and shipments made under the terms of this exemption.

Issued at Washington, D.C.:


Alan I. Roberts
Associate Administrator
for Hazardous Materials Safety

25

(DATE)

Address all inquiries to: Associate Administrator for Hazardous Materials Safety, Research and Special Programs Administration, Department of Transportation, Washington, D.C. 20590.
Attention: DHM-31.

The original of this exemption is on file at the above office. Photo reproductions and legible reductions of this exemption are permitted. Any alteration of this exemption is prohibited.

Dist: FHWA